



GOVERNMENT OF THE REPUBLIC OF NAMIBIA
Ministry of Industries, Mines and Energy

LEGAL COMPLIANCE: REGULATORS VIEW WITH A SPECIAL FOCUS ON THE MINES, WORKS AND MINERALS ORDINANCE 20 OF 1968 AND ITS REGULATIONS

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TABLE OF CONTENTS

- INTRODUCTION
- THE MINING SECTOR & OCCUPATIONAL HAZARDS
- OBJECT OF THE MINES, WORKS AND MINERALS ORDINANCE 20 OF 1968
- RELEVANCE OF ORDINANCE TODAY
- LEGAL COMPLIANCE: KEY STATUTORY PROVISIONS
- CONSEQUENCES OF NON-COMPLIANCE
- CONCLUSION



INTRODUCTION

- Namibia is rich in mineral resources and mining is a key driver of our economy, contributed about 14% **to Namibia's GDP in 2025 with direct employment of 20,798.**
- The Ministry of Industries, Mines and Energy (MIME) through the Department of Mines oversees the mining sector, granting licenses formulating policies, enforcing regulations.
- The department is focused on facilitating mining growth and updating policies, to ensure the sector operates in a safe efficient and productive manner.



THE MINING SECTOR & OCCUPATIONAL HAZARDS

Why OHS AND compliance critical in mining

- **High-risk sector:** mechanical accidents, collapse, rock falls, gas, dust, explosives, heavy machinery.
- **Occupational diseases:** silicosis, pneumoconiosis, occupational lung diseases, hearing loss, vibration injury, chemical exposures.
- Long hours, fatigue, mental health, stress, shift work.
- **Environmental and community exposure such** tailings, contaminated water, dust and etc.

Global benchmarks / norms

- ILO Safety and Health in Mines Convention 1995 (C176) as an international standard for mine safety
- OH&S management systems: ISO 45001
- Risk-based approach, proactiveness, participatory safety culture and etc.



OBJECT OF MINES, WORKS AND MINERALS ORDINANCE 20 OF 1968

- To provide for protection of the health and safety of employees and other persons at mines and, for that purpose to promote a culture of health and safety;
- To provide for the enforcement of health and safety measures;
- To provide for effective monitoring systems and inspections, investigations and inquiries to improve health and safety;
- To regulate employers' and employees' duties to identify hazards and eliminate, control and minimise the risk to health and safety;
- To provide for matters connected therewith.



RELEVANCE OF ORDINANCE TODAY

- The Labour Act 1992 repealed the Mines, Works and Minerals Ordinance.
- Presidential Proclamation, 1997, assigned of the provisions of the Regulations relating to the Health and Safety of Employees at Work made under the Labour Act of 1992 to line ministries.
- However, the Minerals Act 33 of 1992 , retained the health & safety aspects of the Ordinance.
- Provisions in so far as it relates to the appointment and powers, duties and functions of the Chief Inspector of Mines and an inspector of mines, and the safety and health of persons employed in or in connection with mines and works survived.



LEGAL COMPLIANCE: KEY STATUTORY PROVISIONS

- Reg. 26, 28 & 30: Manager appointment; Mine Manager Appointment, qualification and duties and Appointment and responsibility of manager's assistants.
- Reg. 31: Other duties of a manager such provision of ablution facilities, drinking water, reporting of accidents and etc.
- Reg. 111-120: Duties of holder of blasting certificate and care of explosives, (*read in conjunction with the Explosive Act 26 of 1956*)
- Reg. 125: Submission of Mine plans, surface plans, underground plans and etc.



LEGAL COMPLIANCE: KEY STATUTORY PROVISIONS

- Reg. 148: Chief Inspector may remove samples
- Reg. 204-234: Application, registration, usage and inspection of boilers
- Reg. 235: Reporting of accidents, serious personal injury and inquiries into fatal accidents
- Reg. 237: Place of accident to be left undisturbed
- Reg. 241: Reporting non-casualty accidents



LEGAL COMPLIANCE: KEY STATUTORY PROVISIONS

- Reg. 242: Accident Register
- Reg. 245 & 246: Provision of Ambulance, Emergency Supplies and First Aid Training
- Reg. 251-252: Blasting Certificate Issuing Authority and Minimum Qualifications
- Reg. 255: Chief Inspector may suspend or cancel blasting certificate



CONSEQUENCES OF NON-COMPLIANCE

- Directives and Non-compliance orders.
- Penalties as per provisions of the law: fines or imprisonment or both.
- Suspension of operations.
- Suspension of transport and export permits.
- Withdrawal of mining rights by the Minister.



CONCLUSION

- Ordinance 20 of 1968 is under review to keep up with the dynamics of the industry and to maintain a safe and productive mining sector.
- Compliance is imperative to maintain a zero-harm mining sector that ensures a safe, productive and conducive working environment.
- If it is possible to mine one day without any fatality then it is possible to mine a whole year without a fatality.
- If you cannot mine safely, then it is better not mine at all.



SEEK SAFETY,
AIM SAFETY,
FOLLOW SAFETY,
ENSURE SAFETY,
TEACH SAFETY,
YIELD SAFETY.



A ZERO-HARM mining sector in Namibia is a possibility, and it all starts with compliance.

THANK YOU!!



Q & A

